

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Senior District Judge Richard P. Matsch**

Date: May 21, 2015
Courtroom Deputy: Cathy Pearson
FTR Technician: Kathy Terasaki

Civil Action No. **12-cv-02735-RPM**

Counsel:

PAUL BAUMAN,

David Lane
Michael Fairhurst

Plaintiff,

v.

**STAN BISHOP,
JOSH WEATHERILL, and
NICK HARTBAUER,**

Leslie Schluter

Defendants.

COURTROOM MINUTES

JURY TRIAL (DAY 4)

8:30 a.m. **Court in session. No jury.** Counsel and parties present.
Charging conference held.

8:43 a.m. **Court in recess.**

9:01 a.m. **Court in session. No jury.**
Discussion held regarding when to advise the jury of the Court's Rule 50
rulings.

9:04 a.m. Jury enters.
Plaintiff's witness, Jesse Baker, is sworn.
Direct examination by Mr. Lane.

9:14 a.m. Cross-examination of Jesse Baker by Ms. Schluter.

9:29 a.m. Redirect examination of Jesse Baker by Mr. Lane

Plaintiff rests.

9:30 a.m. Defendants' witness, Josh Weatherill, previously sworn.
Direct examination by Ms. Schluter.
Witness referred to Defendants' Exhibit B.

9:40 a.m. Cross-examination of Josh Weatherill by Mr. Lane.

9:42 a.m. Defendants' witness, Michael Rulo, is sworn.
Direct examination by Ms. Schluter.

9:48 a.m. Defendants rest.

The Court advises the jury regarding his rulings dismissing Defendant Ensminger, and Defendants Weatherill's and Hartsbauer's violation of Plaintiff's 4th Amendment rights.

9:52 a.m. Jury out.
Discussion held regarding the anticipated length of closing arguments and Defendants' Exhibits A and C. Defendants' Exhibits A and C will not be admitted.

9:54 a.m. Court in recess.

10:10 a.m. Court in session. Jury in.
Closing arguments given by counsel.

11:58 a.m. Jury out.
Court in recess.

1:04 p.m. Court in session. Jury in.
Court instructs the jury.

1:26 p.m. Oath to Marshal.
1:30 p.m. Jury is excused to begin deliberations.

1:32 p.m. Court in recess.

2:54 p.m. Court in session. No jury.
The Court advises counsel and the parties that the jury submitted a question at 2:40 p.m. Discussion held regarding the jury's question. The Court will take a brief recess to allow the Court and counsel time to research the question.

2:58 p.m. Court in recess.
3:06 p.m. Court in session. No jury.
The Court advises counsel and the parties of his answer to the jury's question. The Court's answer has been delivered to the jury.

3:07 p.m. Court in recess.

4:23 p.m. Court in session. Jury in.

The Court is advised by the presiding juror that the jury has not reached a verdict. The jury is excused until 9:00 a.m. on May 22, 2015, at which time deliberations will continue.

4:32 p.m. Court in recess.

Trial continued. Total time: 3 hours and 36 minutes.